

3.1 Government and politics of the UK

3.1.1 The government of the UK

Government and Politics of the UK is divided into ten sections. Each has a particular focus but their interrelationships must be understood to appreciate the complexities of the system. Students will study each of the prescribed sections below.

3.1.1.1 The nature and sources of the British Constitution

Key concepts and terminology:

- codified
- uncodified
- statute
- common law
- conventions
- authoritative opinions
- The royal prerogative
- rule of law
- parliamentary sovereignty
- individual and collective rights.

Focus

Students should develop awareness of the significance of the following historical documents to the development of rights in the UK:

- Magna Carta (1215)
- Bill of Rights (1689)
- Act of Settlement (1701)
- Parliaments Acts (1911 and 1949).

Students should analyse and evaluate:

- the nature and sources of the British constitution
- contemporary legislation and current issues regarding rights
- issues and debates around recent constitutional changes
- debates about the extent of rights in the UK
- two examples of constitutional changes since 1997, such as the establishment of devolved legislative bodies in constituent countries of the UK, the introduction of a Freedom of Information Act, adoption of the Human Rights Act, changing composition of the House of Lords
- areas where individual and collective rights are in agreement and where they are in conflict.

3.1.1.2 The structure and role of Parliament

Key concepts and terminology:

- scrutiny of executive
- Commons
- Lords
- MPs and peers
- delegates and trustees
- Burkean theories of representation
- delegate theories
- mandate theories
- trustees
- parliamentary privilege
- opposition
- legislation
- debate
- redress of grievances
- campaign
- referendum.

Focus

Students should analyse and evaluate:

- scrutiny of the executive and how effective scrutiny of the executive is in practice
- parliamentary debate and the legislative process
 - Commons
 - Lords
- theories of representation - Burkean, delegate, mandate theories
- the roles and influence of MPs and peers
- the significance of Commons and Lords:
 - work of committees
 - role of the opposition
- the extent of Parliament's influence on government decisions:
 - Party discipline enables the government to routinely outvote opposition
 - government control of civil servants' appearances before Select Committees
 - membership of those committees is largely controlled by the Whips' offices.
- interactions of parliament and other branches of government.

3.1.1.3 The Prime Minister and cabinet

Key concepts and terminology:

- core executive
- prime minister
- primus inter pares
- cabinet
- inner cabinet
- cabinet committee
- individual and collective responsibility
- accountability.

Focus

Students should analyse and evaluate:

- how policy is made
- the relationship between Prime Minister and cabinet
- the difference between individual and collective responsibility. Examples might include:
 - resignation of Sir Thomas Dugdale – Crichton Down (1954)
 - resignation of Iain Duncan Smith over Welfare Reforms (2016)
- two examples that demonstrate the power of the Prime Minister and cabinet to dictate events and determine policy making. One example must be from 1945–1997. The second example must be from 1997 to the present. Examples might include:
 - introduction of poll tax (1990)
 - invasion of Iraq (2003)
- government/parliament relations – accountability/interest.

3.1.1.4 The judiciary

Key concepts and terminology:

- Supreme Court
- judicial independence and impartiality
- separation of powers
- ultra vires
- judicial review.

Focus

Students should analyse and evaluate:

- the composition of the judiciary and the appointments process
- the role of the Supreme Court and its impact on government, legislature and policy process
- judicial influence on government
- importance of ultra vires, judicial review and the Supreme Court's interactions with and influence over the legislative and policy making processes.

3.1.1.5 Devolution

Key concepts and terminology:

- devolution
- The Scottish Parliament and Government
- The Welsh Assembly and Government
- The Northern Ireland Assembly and Executive.

Focus

Students should analyse and evaluate:

- the roles, powers and responsibilities of the different devolved bodies in the UK
- debate around devolution in England
- existing devolution in England
- impact of devolution on government of the UK.